

Department of Agriculture Fisheries and Forestry, May 2025

An updated guide for research and development corporations (RDCs) and third parties about the use and disclosure of information held on a levy payer register will be released later in 2025.

Purpose of this page

This page aims to:

- explain what levy payer information is
- support rural research and development corporations (RDCs) to use information held on levy payer registers
- provide information about disclosing levy payer information to a third party and the approval process
- set out how a third party may use levy payer information.

This page does not apply to information collected by or provided to an RDC outside of a levy payer register, such as information given by collection agents in returns.

Levy payer information

‘Levy payer information’ refers to information collected for the purpose of maintaining a register of levy or charge payers. This information can be provided to RDCs under the Primary Industries Levies and Charges Collection Act 2024 (the Collection Act).

It includes information about a person who has paid, or is liable to pay, a levy or charge for a collection commodity or service. The information collected about a levy or charge payer can include:

- name
- address
- contact details
- Australian Business Number (ABN) or Australian Company Number (ACN)
- the amount of levy or charge they were liable to pay in relation to the commodity
- any other details prescribed in the rules issued by the Secretary relating to the production or processing of a collection commodity.

Recipients of levy payer information

Recipients of levy payer information include:

- RDCs
- Australian Bureau of Statistics.

Uses of levy payer information

Levy payer information can be ‘personal information’ under the Privacy Act 1988 and must be treated in accordance with the Australian Privacy Principles (APPs).

An RDC may use levy payer information only for the purposes in section 42 of the Collection Act:

- to maintain a register of levy payers or charge payers
- to maintain a register of those persons eligible to vote in any poll conducted by, or on behalf of the body
- in performing any of its functions under a law of the Commonwealth
- in performing any of its obligations under a contract, deed of agreement or other agreement between the Commonwealth and the body
- for a declared recipient body (an industry-owned RDC) – to determine whether a person is, or remains eligible to be, a member or shareholder of the body.

Disclosing levy payer information

RDCs may disclose levy payer information to a third party for specific purposes if the Secretary has given approval in writing to do so under section 44 of the Collection Act.

If the Secretary has approved the use of levy payer information by a third party, they may only use information disclosed to them by an RDC for:

- research and development (R&D) activities
- marketing activities
- biosecurity purposes
- National Residue Survey purposes
- in connection with any activity carried out, or proposed to be carried out, by the disclosing RDC for the benefit of levy payers or charge payers on the relevant commodity.

Disclosure of levy payer information that is not covered by an approval may attract a civil penalty.

How to apply for approval to disclose levy payer information

RDCs should make a written submission to the Secretary to seek approval to disclose levy payer information and outline:

- the purpose for which levy payer information would be used and how that use aligns with the permitted uses for an RDC and for a third party
- the type of information that would be disclosed or used and for how long
- the identity of the third-party recipient

- the nature of any relationship between the RDC and the third-party recipient and between the recipient and levy payers
- how levy payer information will be protected and managed by the third party
- any other relevant information.

A new request for approval must be made if:

- different types of levy payer information are to be provided to a third party
- levy payer information would be used for a different purpose
- levy payer information is to be disclosed to a new third party
- the length of time that was approved to disclose and use the information expires.

Send the written submission

By email to: leviestaskforce@aff.gov.au

By post to:

The Secretary

Department of Agriculture, Fisheries and Forestry

GPO Box 858

Canberra, ACT 2601

When a response is given

The Secretary must respond in writing to a request to disclose levy payer information, outlining his approval of granting or refusing the request. The Secretary may impose conditions in an approval to release levy payer information to a third party. If the Secretary refuses to grant approval, a written notice of the refusal and the reasons for it must be provided.

Request a review of a decision

Under section 48 or 49 of the Collection Act, a person affected by a decision of the Secretary about disclosing or using levy payer information may request reconsideration and review of the decision.

The person should make that request in writing to the Secretary within 28 days after they are notified of the decision. They must include the reasons for their request for reconsideration and review of the decision.

Primary Industries Legislation

This information is a guide only. You must be aware of your obligations under relevant levy and charges laws.

This includes:

- Primary Industries Levies and Charges Collection Act 2024
- Privacy Act 1988

Contact us

For more on levy payer registers or levies and charges, [contact the Levies team](#).

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/levies/levy-payer-registers/levy-payer-register-guide>